

Mr. Ponce rather than any determination as to the merits. Neither side provides a great deal of robust argument/facts for their respective positions. Denial of relief appears possible on this record.

Fourth, the discovery request, as presented would not unreasonably intrude upon the privacy rights of class members. To be sure, “the contact information for [Defendants’] current and former employees deserves privacy protection.” *Belaire-West Landscape, Inc.*, 149 Cal.App.4th at 561. “While it is unlikely that the employees anticipated broad dissemination of their contact information when they gave it to [Defendants], that does not mean that they would wish it to be withheld from a class action plaintiff who seeks relief for violations of employment laws.” *Ibid.* “[C]urrent and former [] employees reasonably [can] be expected to want their information disclosed to a class action plaintiff who may ultimately recover for them unpaid wages that they are owed.” *Ibid.* Moreover, “no serious invasion of privacy would result from the release of the names, last known addresses, and last known telephone numbers of current and former employees as long as the disclosure was limited to the named plaintiff[] in a putative class action filed against their employer following a written notice to each employee giving them the opportunity to object to the disclosure of that information.” *Ibid.* “Disclosure of the contact information with an opt-out notice would not appear to unduly compromise either informational privacy [*i.e.*, protection against “dissemination and misuse of sensitive and confidential information”] or autonomy privacy [*i.e.*, protection against interference with “personal activities and decisions”] in light of the opportunity to object to the disclosure. *Id.* at 559, 561.

In sum, after applying a balancing test and weighing the actual or potential abuse of the class action procedure against the potential benefits that might be gained, the Court concludes that precertification discovery, as outlined in Plaintiff’s motion at 9:12-10:1, is warranted. The benefits of this discovery clearly and substantially outweigh any potential risk of potential abuse or prejudice to the putative class members.

3. CU0002002 Cynthia Repella vs. Tania Blair

This matter is removed from calendar pursuant to the notice of withdrawal of the motion to be relieved as counsel filed June 4, 2026.

4. CU0002304 Jason Christ v. Justis Barquilla

Plaintiff Jason Christ’s motion to strike portions of defendant’s answer and cross-complaint is granted in part.

Meet and Confer

Defendant argues that Plaintiff failed to meet and confer prior to filing the motion to strike. Defendant appears correct. “Before filing a motion to strike pursuant to [Code of Civil Procedure sections 435 to 437b], the moving party shall meet and confer” Code Civ. Proc., § 435.5(a). There is no evidence that Plaintiff did do here. That said, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” Code Civ. Proc., § 435.5(a)(4). “If, upon review of a declaration under section [435.5(a)(3)] a court learns no meet and confer has taken place, or concludes further conferences